

**IN THE COURT OF PRESIDING OFFICER,
LABOUR COURT, HUBBALLI.**

PRESENT

Sri. KIRAN S. GANGANAVAR
B.Com., LL.B.(Spl),
**PRESIDING OFFICER,
LABOUR COURT, HUBBALLI.**

KID. No. 37/2017

DATED THIS THE 3rd DAY OF APRIL, 2019

Claimant : Sri.Shekhargouda
S/o. Virapanagouda Piddanagoudar,
Age: 61 years, Occ : Nil,
At :R/o. H.No. 653/8,
Panchakshari Nagar,
Navanagar, Hubballi.
(By Sri. A. M. Patil, Adv)

-Vs-

Respondent: The Divisional Controller,
NWKRTC. Hubballi Division,
Hubballi.
(By Sri. B.N. Salimath, Advocate)

A W A R D

Petitioner invoking Section 10(4-A) of the Industrial Disputes Act, 1947 is challenging the order of the Respondent in dismissing from service, bearing No. VaKaRaSa / HuVi / ShiKraSha /1699(11)/3542 dated 26.06.2012 which was earlier subjected to scrutiny under Section 33(2)

(b) in Sl. Apl. No. 1001/2012 relating to I.D. No.148/2005.

2. According to the petitioner, he joined the service as a Conductor in 1979 at Sirsi Sub-Division, Haliyal Depot. In 1981, his service was confirmed. Thereafter served in Hubballi City, Hubballi Division. Since the date of service, petitioner has been honest and sincere. While the petitioner was on duty on 22.06.2011 on CBT – Anandnagar – CBT route with bus bearing No. KA-25/F-1653, a team of Ticket Inspectors intercepted and found 83+02+15 passengers on board. Among them, 09 passengers were found without tickets. They were fined and offence memo was issued. It is stated that the petitioner had been serving the Corporation since 32 years and has not committed any default in the duty. In spite of it, by filing false complaint, petitioner is being prosecuted.

On 22.06.2011 there were strikes of Auto in the city. There were more number of passengers. Most of the buses were running on more than optimum capacity. Petitioner being Conductor for his ability was issuing tickets to almost all the passengers. On that day there were only 70

passengers in the bus and not 83+02+15 as contended. The bus had two doors and there were no passengers without tickets.

On that day, the team intercepted the bus and boarded into at stage No. 6 Siddarudh Math Cross. It was 10.45 a.m., and ETM machine report is extracted and there were none of the passengers without the tickets. However, the said bus proceeded to stage No.7 and 8, and at the time of team boarding into the bus the team did not find any passengers without the ticket. And again another status report is extracted at 11.21 a.m. From these status reports, number of passengers as well as the tickets being issued is clearing coming out. However, the said team of Inspectors near Old-Bus-Stand had found 9 passengers without the tickets. While booking the case, the team has not collected the complete name and address nor the statement of such passengers is recorded. Even the said bus was not subjected to inspection at Old-Bus-stand.

Inspite of team taking a report at 10.45 a.m., another status report is taken at 11.21 a.m. for registering a false complaint and the offence memo

discloses the time of inspection between 11.15 a.m. to 11.30 a.m. Even during the inquiry, the ETM machine was not subjected to examination so as to ascertain the ETM status report extracted at 10.45 a.m. and 11.21 a.m. For the purpose of registering the case, the team had put false signatures and amount of fine is collected from the known persons of the team.

According to the offence memo, it is stated that ticketless passengers boarded at stage No. 5 Anand Nagar to travel to the stage No.9 Corporation. Said allegation is false as the team had already boarded into the bus at Siddarudh Math Cross, Anand Nagar and status report was subjected to inspection. Without registering the case at relevant stage only to file a false case, place and the passengers are wrongly entered in the charge memo. Based on the wrong entries of the offence memo, even the charge-sheet is issued and said charges were properly replied. However, the official superiors not being satisfied had initiated the inquiry and during the process ETM machine and status reports are not brought in. Without properly considering the procedures

involved in the inspection along with the defence of the petitioner it is wrongly concluded in the inquiry that the petitioner had deliberately not issued the tickets to said passengers. Based on inquiry report, another notice was issued before imposing the punishment and said notice was also properly explained. However, without considering the explanation, the petitioner was dismissed.

The petitioner had served the Institution and even after dismissal did not join the service anywhere. Petitioner had no other source of income and has the burden of maintaining his family. Even the dismissal from service for insufficient reasons has affected the petitioner personally. Hence, said order of punishment deserves to be interfered along with the findings of inquiry and petitioner be reinstated along with the back wages.

3. On issuing the notice, Respondent appeared and filed a detailed objections. According to the Respondent, the bus in which the petitioner was serving as conductor was intercepted on 22.06.2011 and noticed 83+02+15 passengers.

Among them, 09 passengers had no tickets. They were to be issued of tickets for the value of Rs.8/-. They were travelling from Anand Nagar stage No.5 to HDMC-stage No.9. Noticing the irregularities and the pilferage of revenue, collected the penalty from the passengers and also status report from the ETM machine. Further offence memo was issued on the spot, entries were made in the way bill and forwarded the detail report to the Disciplinary Authority. The Disciplinary Authority perused the report and noticed the misconduct. Hence, articles of charge were issued on 02.07.2011 along with the list of witnesses and documents. Petitioner submitted a report to the charges denying the allegations. Said explanation was not satisfactory and convincing. Hence, inquiry was instituted to ascertain the truth of the allegations.

Inquiry Officer had followed the procedures provided in C. & D. Regulations, 1971 and followed the principles of natural justice during the inquiry. The Claimant was given adequate and reasonable opportunities to defend and during the inquiry, petitioner contested the allegations by effectively participating in the inquiry. Not only petitioner

cross-examined the prosecution witnesses, even lead the defense statement and materials. Inquiry was came to be concluded and a report was placed before the Disciplinary Authority. Considering the findings of the departmental inquiry, another notice was issued before penalizing with the quantum of punishment. Considering the explanation as well as the findings recorded, it was noticed that the misconduct alleged was being serious in nature. Besides petitioner even earlier had involved in the commission of similar misconduct and was penalized in more than 100 cases. Hence, it was felt proper to dismiss the petitioner. Accordingly order was passed.

In view of pendency of I.D.No.148/2005 before the Industrial Tribunal, Bangalore, a Sl. Apl. No. 1001/2012 was also filed. The said Sl. Apl. was allowed. Previously the petitioner was working as a Conductor at Belgaum Division and was involved in 106 misconduct cases, for which he was even awarded the minor punishments. Even then, he was not improved in his service and once again committed serious misconduct of pilferage. Hence,

the Claimant is not entitled for any relief or sympathy. Hence submits to dismiss the petition.

4. In consideration of the above pleadings, the following 4 issues have been framed by my learned predecessor-in-office.

1. Whether the domestic inquiry held against the Claimant is fair and proper ?
2. Whether the Respondent Management is justified in dismissing the Claimant from service w.e.f. 26.06.2012 ?
3. Whether the Claimant is entitled to the reliefs sought for ?
4. What order or award ?

5. Among them, Issue No.1 was disposed by the considered order dated 21.04.2018, it was answered negatively. Thereafter the Respondent Management again took the opportunities to examine the witnesses. Accordingly, one of the members of the Team of Inspection was examined as MW.2 and relied upon the documents marked earlier. The said witness was subjected to cross-examination and the documents relied earlier were also pressed into the service.

6. Heard the learned Counsels and perused the materials.

7. My finding to the above issues are as under;

Issue No.1: Already answered in the negative as per order dated 21.04.2018.

Issue No.2: In the negative.

Issue No.3: Partly in the affirmative.

Issue No.4: As per final order for the following;

REASONS

8. **Issue No. 2 & 3 :-** These issues are discussed together to avoid the repetition of facts as they are interlinked.

9. M.W.2 was subjected to cross-examination wherein both time of conducting the inspection, and stage of inspection of the bus in question was confronted. Further the status report marked at Ex.M.4 is invoked to contend that much earlier to the Ex.M.4, another status report was obtained. It is primarily contended that Ex.M.4 status report does not tally with the passengers recorded in the charge memo. Thereby, it is contended that alleged passengers subjected to the fine based on

the stage of boarding to the stage of alighting does not match with the allegations.

10. It is also contended that as per General Standing Orders relating to the inspection and prosecution, reporting of ticketless passengers travelling has to be reported immediately on the day of finding the passengers. Thereby the anomaly or irregularity in reporting is a good ground for discharging of the accusations.

11. M.W.2 in his cross-examination has contended that the reporting of charge memo is not happened on the day of issuing the memo for which it is contended that they were on different routes of checking thereby, on the day of returning the head-quarters, the charge memo is reported. Such explanation is not corroborated by any of the additional materials available with either the Respondent Management or his witness. However, the fact that the issuance of charge memo not being reported on the day of issuance has remained unaltered.

12. It is also one of the definition that ETM machine from which status reports are generated was not made available at the time of inquiry. It is equally necessary to note that ETM machine is a prime material evidence because said machine is an electronic device capable of delivering the data stored therein. It is not the case of the management that said ETM machine was made available to the departmental inquiry and status reports as contended by the workman were not generated. It is the specific case of the workman that said ETM machine was not produced. In addition the generation of status report was possible only by the Team of the Line Checking. However on going through the cross-examination of the departmental inquiry, it is noticed that necessity of status reports generated at different point of time is nowhere coming out. Therefore necessity of status report appears to be an afterthought. Therefore, non-availability of ETM machine for the inquiry and also during the trial would have affected sanctity of both the status report as well as the charge memo. Though the way bill which is manually entered is marked at

Ex.M.6 the content of which are not legibly brought into evidence so as to substantiate the allegations of 83+02+15 passengers being available or among those passengers of the bus, 09 passengers being travelling without the tickets could not be appreciated. In other words, at least out of 83 passengers, 74 would have been the paid passengers. Even figure of both the passengers + senior citizens + pass holders with regular pass holders would have been the total number of passengers available in the bus. Even this fact is not satisfactorily established.

13. In addition, it is definite case of the petitioner that the allegations of certain passengers travelling without ticket would have been substantiated had the passengers paying penalty were brought to the inquiry or the trial. None of those persons are brought to the inquiry or the trial. Such plea acquires significance because of answer to the Issue No.1 wherein the inquiry is found to be unfair and improper. As such the finding of fact recorded in departmental inquiry has to be established *de novo* under such

circumstances, it is up to the management to bring in relevant cogent evidence to substantiate the ticketless passengers travelling in the bus. Therefore, without sufficient materials even to draw the inference of ticketless passengers travelling, it is not possible to find any propriety or correctness in the allegations.

14. To make matter worse MW.2 in the cross-examination has admitted that they are also under the obligation to reach the target for booking the cases of ticketless travellers or pointing out the negligence of the Conductors in issuing the ticket or in collecting the amount from the passengers. Even in this case, it is the contention that 09 passengers were found without ticket. It is not the case of management that the petitioner workman had collected amount and did not issue the tickets. For the said purpose, Inspection Team in addition to the checking that the passengers must have been crossed / checked the amount available with the workman – conductor and must have compared the value of the tickets issued and the amount available with the Conductor which would have either

matched or the difference of it would have been raised to appreciate the facts in question. In the absence of these materials, it cannot be reasonably said that even the conductor workman in discharge of his duty cannot be said to have collected the amount and failed to issue the tickets.

15. In this regard, learned Counsel for the Respondent Management relied upon the Judgment of Hon'ble High Court of Karnataka in **Writ Petition No. 4537 of 2002 (Between The Managing Director, The North East Karnataka Road Transport Corporation –vs-- Shivayananamath)**, wherein the conduct of the collecting the amount not issuing the tickets by the Conductor was found detrimental to the running of the Corporation. Thereby any amount of leniency was said to be unwarranted.

16. Further the learned Counsel for the Respondent Management relied upon the history sheet attached with the final order wherein as many as 106 cases were earlier booked against the present workman for causing the loss in

between Rs.1-60 in the year 1984 to Rs. 14-50 in the year 1995, Rs. 12/- in the year 2010, Rs. 72/- in the year 2011 for not issuing the ticket and not collecting the fare are noticed along with similar cases of similar value. It is also noticed that the petitioner herein happens to be the Conductor of the City Bus wherein the tickets are of lesser value are issued. Not only the value of the ticket is in question, even the conduct of the petitioner is also at stake. While examining the situation, element of mischievous people willing to travel without ticket with hope of duping the conductor and enforcing the authorities cannot be overlooked. Even the poverty of the labour class passengers compelling to seek charitable services cannot be ignored.

17. At the same time, it is also noticed that the petitioner herein joined the service in the year 1980 and had put in more than 30 years of service as on the date of order in the year 2012 and in most of the cases of the past history, good amount of fine and increments are lost. No doubt, the habit of enriching himself from the pilferage would have enticed the petitioner for higher amount, it appears

there is failure on the part of the Inspection Team to find double or triple digits of the either amounts or the ticketless passengers in the bus of the petitioner.

18. It is also contended that as on the date of checking, the petitioner i.e., on 22.06.2011 there was strike by the Auto Drivers whereby most of the city buses were running with optimum capacity. Such contentions cannot be overlooked especially when a bus of having capacity of 55 to 60 passengers is crowded with nearly 100 passengers nearly double the capacity. Under such circumstances, ability to find 09 passengers without tickets is the luck of inspection team and an official capable of facing more than 100 cases of ticketless passengers would have dared to make a fortune. But considering other prevailing circumstances of the persons travelling in the bus and the amount of the tickets and the persons without tickets, the allegations appears to be highly improbable. However, these material particulars are canvassed only in the trial. In other words, Respondent Management had failed to substantiate

the allegations of finding ticketless passengers deliberately in the bus of the petitioner.

19. This examination of the facts would be the appreciating of the culpability of the petitioner. However, discipline of service requires that the bus should not have been allowed to move without issuing the tickets. This principle carry significance because of the punishment imposed by the management along with the materials considered for said punishment. The Respondent management while imposing the punishment has observed that the petitioner till that date was in all involved nearly 106 cases of such a nature. These amount of cases are surprising because in most of these cases, petitioner is already found punished. The said punishment must have deterred the petitioner from indulging into such activities or must have left no mark to consider punishments for indiscipline service. In majority of the cases, amount involved is very much meager. However, learned Counsel for the Respondent Management has contended that the meager amount cannot be a ground to exonerate and to leave the petitioner unpunished.

Such contention cannot be overlooked. However, insufficient punishment also cannot be an abatement to venture again with such misconducts. There is absolutely no reason by the Counsel for the Respondent management for allowing the petitioner to continue to serve in spite of facing 106 cases of ticketless travelling. Besides the length of service and approaching days of the superannuation of the petitioner draw the attention to reconsider the quantum of punishment imposed in this case. Smaller in value of pilferage cannot be the acceptance of misconduct by the management.

20. In this regard, the learned Counsel for the petitioner has also relied upon the unreported judgments of Hon'ble High Court of Karnataka rendered in **Writ Petition No. 40860/2008 (LK) dated 25.01.2010** wherein a Conductor found starting the journey without issuing tickets is found contrary to the rule of "Issue & Start" i.e., issuing ticket thereafter starting the journey was found liable for minimum punishment of withholding three annual increments with cumulative effect.

21. Further in another **Writ Petition No.62998/2012 (L-KSRTC) dated 06.02.2017**, wherein reinstatement was confirmed but the relief for back wages was quashed. Similarly in **Writ Petition No. 13717/2010 (L-KSRTC) dated 26.03.2018**, a conductor being dismissed for not issuing the tickets even after collecting Rs. 205/- was dismissed from the service. However, the said punishment was found disproportionate to the gravity of the offence and it was modified for withholding two increments with cumulative effect and ordered to pay monetary benefits without any interest.

22. Similarly in **AIR 2017 SUPREME COURT 57 (Between Jorsingh Govind Vanjari –s-- Divisional Controller, Maharashtra State Road Transport Corporation, Jalgaon Division, Jalgaon)** wherein the allegations of collecting the fares without issuing the tickets was found unjustified on the basis of perverse finding entered by the Inquiry Officer. Therefore, grant of one time compensation equivalent to 50% back wages was found to be not proper. Further gratuity can be

denied only alleged misconduct constitutes offence involving moral turpitude results into termination of service.

23. Hence, considering the materials on record and the nature of punishments observed in the above said judgments, it is found proper that the punishment of dismissal from services is prima facie disproportionate. Therefore, the petitioner would be entitled to be reinstated. However, by this time, the petitioner had attained the superannuation. Date of birth of petitioner is 01.06.1957 and the date of superannuation is 31.05.2017. Hence, considering the allegation and its gravity along with the conduct of Respondent Management through out, it is found proper that absolving the petitioner of the allegations based on insufficient materials it appears to be a sufficient solace and petitioner shall be awarded only 50% of the salary as the petitioner has not at all worked during this period. Withholding of 50% of the monetary benefits of the service appears to be sufficient punishment to the petitioner. Hence, 50% wages with reinstatement shall be considered for computing the retirement monetary benefits.

Accordingly, Issue No.2 is answered in the negative and Issue No.3 is answered partly in the affirmative.

23. **Issue No.4 :-** In view of the foregoing reasons and the discussions, I proceed to pass the following :

ORDER

K.I.D. No. 37/2017 is hereby partly allowed.

The petitioner is entitled to 50% of monetary benefits of the service from the date of his dismissal till the date of his superannuation, within two months from the date of publication of the award.

Send a copy of this award to the Government for its due publication as contemplated under Section 17-A of the Industrial Disputes Act, 1947.

(Dictated to the Judgment Writer, transcribed and computerized by her, corrected, prints taken out, signed by me on this **03rd day of April, 2019**).

Sd/-
(K.S. GANGANAVAR)
Presiding Officer,
Labour Court, Hubballi.

ANNEXUREWitnesses examined for the Claimant:

-Nil-.

Witnesses examined for the Respondent:

M.W.1 Sri. Parashuram B.Naduvnamani.

M.W.2 Sri. Sayyed Sadaruddin Mujawar.

List of documents marked on behalf of the Claimant:

-Nil-

List of documents marked on behalf of the Respondent:

Ex.M.1.Certified copy of report of Assistant Traffic
Inspector dated 21.11.2017.

Ex.M.2 Penalty receipt.

Ex.M.3 ETM tickets.

Ex.M.4 Inspection report.

Ex.M.5 Offence memo.

Ex.M.6 Way bill.

Ex.M.7 Articles of charges.

Ex.M.8 Reply to the articles of charge.

Ex.M.9 Appointment of Inquiry Officer.

Ex.M.10 Personal hearing proceedings.

Ex.M.11 Findings of Inquiry Officer.

Ex.M.12 Show cause notice.

Ex.M.13 Reply to the show cause notice.

Ex.M.14 Punishment order.

Ex.M.15 History sheet.

Hubballi.

Date: 03.04.2019

Sd/-
(K.S. Gangannavar),
Presiding Officer,
Labour Court, Hubballi.